

liability . . . in the case of police officers making an arrest.” *Id.*, at 556–557. These decisions were confined to certain circumstances based on specific analogies to the common law.

Almost immediately, the Court abandoned this approach. In *Scheuer v. Rhodes*, 416 U.S. 232 (1974), without considering the common law, the Court remanded for the application of qualified immunity doctrine to state executive officials, National Guard members, and a university president, *id.*, at 234–235. It based the availability of immunity on practical considerations about “the scope of discretion and responsibilities of the office and all the circumstances as they reasonably appeared at the time of the action on which liability is sought to be based,” *id.*, at 247, rather than the liability of officers for analogous common-law torts in 1871. The Court soon dispensed entirely with context-specific analysis, extending qualified immunity to a hospital superintendent sued for deprivation of the right to liberty. *O’Connor v. Donaldson*, 422 U.S. 563, 577 (1975); see also *Procunier v. Navarette*, 434 U.S. 555, 561 (1978) (prison officials and officers).

Then, in *Harlow v. Fitzgerald*, 457 U.S. 800 (1982), the Court eliminated from the qualified immunity inquiry any subjective analysis of good faith to facilitate summary judgment and avoid the “substantial costs [that] attend the litigation of” subjective intent, *id.*, at 816. Although *Harlow* involved an implied constitutional cause of action against federal officials, not a §1983 action, the Court extended its holding to §1983 without pausing to consider the statute’s text because “it would be ‘untenable to draw a distinction for purposes of immunity law.’” *Id.*, at 818, n. 30 (quoting *Butz v. Economou*, 438 U.S. 478, 504 (1978)). The Court has subsequently applied this objective test in §1983 cases. See, e.g., *Ziglar*, 582 U.S., at 151 (majority opinion).¹

II

In several different respects, it appears that “our analysis is no longer grounded in the common-law backdrop against which Congress enacted the 1871 Act.” *Id.*, at 159 (opinion of THOMAS, J.).

There likely is no basis for the objective inquiry into clearly established law that our modern cases prescribe. Leading trea-

¹I express no opinion on qualified immunity in the context of implied constitutional causes of action against federal officials. See, e.g., *Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U.S. 388 (1971).

tises from the second half of the 19th century and case law until the 1980s contain no support for this “clearly established law” test. Indeed, the Court adopted the test not because of “‘general principles of tort immunities and defenses,’” *Malley v. Briggs*, 475 U. S. 335, 339 (1986), but because of a “balancing of competing values” about litigation costs and efficiency, *Harlow, supra*, at 816.

There also may be no justification for a one-size-fits-all, subjective immunity based on good faith. Nineteenth-century officials sometimes avoided liability because they exercised their discretion in good faith. See, e.g., *Wilkes v. Dinsman*, 7 How. 89, 130–131 (1849); see also Nielson & Walker, A Qualified Defense of Qualified Immunity, 93 Notre Dame L. Rev. 1853, 1864–1868 (2018); Baude, Is Qualified Immunity Unlawful? 106 Cal. L. Rev. 45, 57 (2018); Engdahl, Immunity and Accountability for Positive Governmental Wrongs, 44 U. Colo. L. Rev. 1, 48–55 (1972). But officials were not *always* immune from liability for their good-faith conduct. See, e.g., *Little v. Barreme*, 2 Cranch 170, 179 (1804) (Marshall, C. J.); *Miller v. Horton*, 152 Mass. 540, 548, 26 N. E. 100, 103 (1891) (Holmes, J.); see also Baude, *supra*, at 55–58; Woolhandler, Patterns of Official Immunity and Accountability, 37 Case W. Res. L. Rev. 396, 414–422 (1986); Engdahl, *supra*, at 14–21.

Although I express no definitive view on this question, the defense for good-faith official conduct appears to have been limited to authorized actions within the officer’s jurisdiction. See, e.g., *Wilkes, supra*, at 130; T. Cooley, Law of Torts 688–689 (1880); J. Bishop, Commentaries on Non-Contract Law § 773, p. 360 (1889). An officer who acts unconstitutionally might therefore fall within the exception to a common-law good-faith defense.

Regardless of what the outcome would be, we at least ought to return to the approach of asking whether immunity “was ‘historically accorded the relevant official’ in an analogous situation ‘at common law.’” *Ziglar, supra*, at 157 (opinion of THOMAS, J.) (quoting *Imbler v. Pachtman*, 424 U. S. 409, 421 (1976)). The Court has continued to conduct this inquiry in absolute immunity cases, even after the sea change in qualified immunity doctrine. See *Burns v. Reed*, 500 U. S. 478, 489–492 (1991). We should do so in qualified immunity cases as well.²

² Qualified immunity is not the only doctrine that affects the scope of relief under § 1983. In *Monroe v. Pape*, 365 U. S. 167 (1961), the Court held that an officer acts “‘under color of any statute, ordinance, regulation, custom, or usage of any State’” even when state law did not authorize his action, *id.*,

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* * *

I continue to have strong doubts about our §1983 qualified immunity doctrine. Given the importance of this question, I would grant the petition for certiorari.

No. 19–27. *CHEESEMAN v. POLILLO, CHIEF OF POLICE, CITY OF GLASSBORO, NEW JERSEY, ET AL.* Super. Ct. N. J., App. Div. Motion of Firearms Policy Coalition et al. for leave to file brief as *amici curiae* granted. Certiorari denied.

No. 19–532. *UNITED STATES v. CALIFORNIA ET AL.* C. A. 9th Cir. Certiorari denied. JUSTICE THOMAS and JUSTICE ALITO would grant the petition for writ of certiorari. Reported below: 921 F. 3d 865.

No. 19–1010. *ACTAVIS HOLDCO U. S., INC., ET AL. v. CONNECTICUT ET AL.* C. A. 3d Cir. Motion of Twelve Companies et al. and Chamber of Commerce of the United States of America et al. for leave to file briefs as *amici curiae* granted. Certiorari denied.

No. 19–1105. *SHARP, INTERIM WARDEN v. HARRIS.* C. A. 10th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 941 F. 3d 962.

No. 19–1191. *OHIO v. FORD.* Sup. Ct. Ohio. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 158 Ohio St. 3d 139, 2019-Ohio-4539, 140 N. E. 3d 616.

No. 19–6593. *FORD v. WHITE ET AL.* C. A. 9th Cir. Motion of petitioner for reconsideration of order denying leave to proceed

at 168, 183. Scholars have debated whether this holding is correct. Compare Zagrans, “Under Color of” *What* Law: A Reconstructed Model of Section 1983 Liability, 71 Va. L. Rev. 499, 559 (1985), with Winter, The Meaning of “Under Color of” Law, 91 Mich. L. Rev. 323, 341–361 (1992), and Achtenberg, A “Milder Measure of Villainy”: The Unknown History of 42 U.S.C. §1983 and the Meaning of “Under Color of” Law, 1999 Utah L. Rev. 1, 56–60. Although concern about revisiting one doctrine but not the other is understandable, see *Crawford-El v. Britton*, 523 U.S. 574, 611 (1998) (Scalia, J., joined by THOMAS, J., dissenting), respondents—like many defendants in §1983 actions—have not challenged *Monroe*.

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in forma pauperis granted. The order entered January 13, 2020, [589 U. S. 1131] vacated. Certiorari denied.

No. 19–7670. *PANAH v. BROOMFIELD, WARDEN*. Sup. Ct. Cal. Motion of Embassy of Pakistan, Iranian Interests Section for leave to file brief as *amicus curiae* out of time denied. Certiorari denied.

No. 19–8489. *ABBO v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition. Reported below: 798 Fed. Appx. 239.

Rehearing Denied

No. 19–1127. *NEFF v. UNITED STATES*, 590 U. S. 906;

No. 19–6444. *HARRIS v. MOYER, SECRETARY, MARYLAND DEPARTMENT OF PUBLIC SAFETY AND CORRECTIONAL SERVICES, ET AL.*, 589 U. S. 1112;

No. 19–7300. *BOOKER v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*, 589 U. S. 1280;

No. 19–7538. *CARLSON ET VIR v. HARPSTEAD, COMMISSIONER, MINNESOTA DEPARTMENT OF HUMAN SERVICES, ET AL.*, 589 U. S. 1298;

No. 19–7642. *KARNOFEL v. SUPERIOR WATERPROOFING, INC.*, 590 U. S. 908;

No. 19–7669. *MATTISON v. WILLIS ET AL.*, 590 U. S. 908;

No. 19–7732. *HANKS v. UNITED STATES*, 589 U. S. 1299;

No. 19–8010. *CHHIM v. CITY OF HOUSTON, TEXAS, ET AL.*, 590 U. S. 912; and

No. 19–8036. *JACKSON v. UNITED STATES*, 590 U. S. 913. Petitions for rehearing denied.

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Miscellaneous Order

No. 19A1052 (19–8695). *GUTIERREZ v. SAENZ ET AL.* Application for stay of execution of sentence of death, presented to JUSTICE ALITO, and by him referred to the Court, granted pending disposition of the petition for writ of certiorari. Should the petition for writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for writ of certiorari is